

GAHC010099832020



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : AB 1852/2020

1:JINTU DAS
S/O LATE JANA RAM DAS, R/O REHABARI, M.A. ROAD, HOUSE NO. 35, P.S.-
PALTANBAZAR, DIST-KAMRUP (M), ASSAM

VERSUS

1:THE STATE OF ASSAM
REPRESENTED BY THE PUBLIC PROSECUTOR, ASSAM

Advocate for the Petitioner : MR L SARMA

Advocate for the Respondent : PP, ASSAM

BEFORE
THE HON'BLE MR JUSTICE PRASANTA KUMAR DEKA
ORDER

14. 08. 2020

Heard Mr. K. Malakar, the learned counsel for the petitioner. Also heard Mr. R. J. Baruah, the learned Additional Public Prosecutor for the State of Assam who produced the case diary in connection with Paltanbazar Police Station Case No. 428/2020.

By this application under Section 438 Cr.P.C., the petitioner, namely, Jintu Das is seeking pre-arrest bail in connection with Paltanbazar Police Station Case No. 428/2020 under Sections 294/354/354(D)/376/511 IPC.

I have perused the case diary and the subsequent events recorded in the case diary which requires consideration keeping in view the allegations in the FIR that during the visit of the informant with her husband to the place of the petitioner he slapped her. Being satisfied, the petitioner shall appear before the investigating authority within 7 (seven) days and in the event of arrest of the petitioner above named, in connection with the case aforementioned, he shall be released on bail on furnishing bail bond of Rs.15,000/-,(Rupees Fifteen Thousand only) with a suitable surety of the like amount, to the satisfaction of arresting authority. The pre-arrest bail is granted on the following conditions:

- (1) The petitioner shall not leave the territorial jurisdiction of the aforesaid police station, without prior written permission from its officer-in-charge,
- (2) The petitioner shall not hamper with the investigation, or tamper with the evidence of the case,
- (3) The petitioner shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer,
- (4) The petitioner shall appear before the Officer-in-charge Paltanbazar PS within 7(seven) days from today,
- (5) The petitioner shall continue to appear before the Investigating Officer of the above mentioned case after every 10(ten) days from the date of first appearance till such time the attendance is dispensed with by the said investigating officer.

Send back the case diary.

JUDGE

Comparing Assistant